

may then introduce powers of leasing for 21 years (*b*), of sale and exchange (*c*), of maintenance and advancement (*d*), of varying securities (*e*), and of appointment of new trustees (*f*); and, it seems, where the property is joint, or contains mines, or is fit for building, they may also insert powers of partition, of leasing mines, and of granting building leases (*g*). "But there is a palpable distinction," said Sir Launcelot Shadwell, "between powers for the *management* and better enjoyment of the settled estate, as powers of leasing, of sale and exchange, &c. which are beneficial to all parties, and powers which confer *personal privileges* on particular parties, such as powers to jointure, to charge portions, to raise money for any particular purpose, &c." (*h*). The latter, therefore, may not be introduced under a direction to insert *usual* powers, for they have the effect of diminishing the *corpus* of the settled estate, and the Court has no rule by which to determine the *quantum* of the charge (*i*). But where an estate was directed to be settled so as to go along with a Peerage, and the trustees were to insert all such powers as they should "consider proper or their counsel should advise," it was ruled that powers of jointuring and charging portions were for the honour of the whole settlement, and not a favour to the first tenant for life only, in contradistinction to his successors, and therefore ought to be inserted (*j*). If the will or articles direct the insertion of some particular powers by name, then, as *expressio unius exclusio alterius*, the meaning of the words "usual powers" will be *materially qualified. Thus, where it [*128] was stipulated that the settlement should contain a power of leasing for 21 years in possession, a power of sale

(*b*) See *Hill v. Hill*, 6 Sim. 144; *The Duke of Bedford v. The Marquis of Abercorn*, 1 Myl. & Cr. 312.

(*c*) *Hill v. Hill*, 6 Sim. 136; *Peake v. Penlington*, 2 V. & B. 311; and see *Williams v. Carter*, Append. to Sugd. Treat. on Powers, p. 945, 8th Ed.

(*d*) *Mayn v. Mayn*, 5 L. R. Eq. 150.

(*e*) *Sampayo v. Gould*, 12 Sim. 426.

(*f*) *Lindow v. Fleetwood*, 6 Sim. 152; *Brewster v. Angell*, 1 J. & W.

628, *per* Lord Eldon; *Sampayo v. Gould*, 12 Sim. 426.

(*g*) See *Hill v. Hill*, 6 Sim. 145; *The Duke of Bedford v. The Marquis of Abercorn*, 1 Myl. & Cr. 312.

(*h*) *Hill v. Hill*, 6 Sim. 144.

(*i*) *Higginson v. Barneby*, 2 S. & S. 516, *see* 518; *In re Grier's Estate*, 6 I. R. Eq. 1.

(*j*) *Sackville-West v. Viscount Holmesdale*, 4 L. R. H. L. 543.